

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, April 16, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25300 against Sergeant Gary Leite, Tax Registry No. 948376. This case was conferenced on April 9, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of nine (9) vacation days, after Sergeant Gary Leite accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated April 11, 2022. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-25300

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, LEITE	FIRST GARY	M.I. A	COMMAND 121 DETECTIVE SQUAD
SHIELD NO. 5022	TAX REGISTRY NO. 948376	SOCIAL SECURITY NO.	DATE APPOINTED 07/14/2009	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Gary Leite, on or about August 23, 2020, at approximately 0312, while assigned to 063 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 9.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Gary Leite, on or about August 23, 2020, at approximately 0312, while assigned to 063 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Sergeant Gary Leite, on or about August 23, 2020, at approximately 0312, while assigned to 063 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department,	DISMISSED	

DC Burke
FIRST DEPUTY COMMISSIONER

5/31/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

8/14/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-25300

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Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, LEITE	FIRST GARY	M.I. A	COMMAND 121 DETECTIVE SQUAD
SHIELD NO. 5022	TAX REGISTRY NO. 948376	SOCIAL SECURITY NO.		DATE APPOINTED 07/14/2009

RANK/NAME OF COMPLAINANT	COMMAND
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
in that he frisked § 87(2)(b) without sufficient legal authority. 4 . Sergeant Gary Leite, on or about August 23, 2020, at approximately 0312, while assigned to 063 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants without sufficient legal authority.	DISMISSED	

DC Barbato 5/31/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Caber 6/14/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

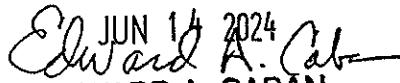
First Deputy Commissioner to Police Commissioner May 30, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-25300 against Sergeant Gary Leite, Tax No. 948376, with the recommendation that Sergeant Leite receive a Schedule "B" Command Discipline, with the forfeiture of nine (9) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

JUN 14 2024

EDWARD A. CABAN
POLICE COMMISSIONER